

DEPARTMENT OF VETERANS AFFAIRS

Justification and Approval

For

Exception to Fair Opportunity Memo

Acquisition Plan Action ID: 36C247-24-AP-1095

1. **Contracting Activity:** *Department of Veterans Affairs, Network/Program Contracting Office, Wm. Jennings Bryan Dorn VAMC located at 6439 Garners Ferry Road, Columbia, SC. 29209 in support of VISN 7 Columbia VA Health Care System.*

2. **Description of Action:**

The proposed sole source task order against Contract Number HTC711-23-D-C025 is for a one-year firm-fixed price (FFP) effort for NGDS Couriers and Express Delivery Services with United Parcel Services Co. (UPS) 1400 N. Hurstbourne Parkway, Louisville, KY 40223-4015.

3. **Description of Supplies or Services:**

The proposed action is to provide express small package delivery services for international package and United States domestic express and ground small package delivery services. Services required include time-definite, door-to-door pickup and delivery, transportation, timely and accurate In-Transit Visibility, and customs clearances processing (if applicable). The services provided within the scope of this requirement are considered "Operational Critical Support".

The total estimated value of the proposed action is \$660,00.00.

Period of Performance: April 1, 2024 thru March 31, 2025

4. **Statutory Authority:** The statutory authority permitting an exception to fair opportunity is Section 41 U.S.C. 4106(c) as implemented by the Federal Acquisition Regulation (FAR) 16.505(b)(2)(i):

() FAR 16.505(b)(2)(i)(A): The agency need for the supplies or services is so urgent that providing a fair opportunity would result in unacceptable delays.

(☒) FAR 16.505(b)(2)(i)(B): Only one awardee is capable of providing the supplies or services required at the level of quality required because the supplies or services ordered are unique or highly specialized.

() FAR 16.505(b)(2)(i)(C): The order must be issued on a sole-source basis in the interest of economy and efficiency because it is a logical follow-on to an order already issued under the contract, provided that all awardees were given a fair opportunity to be considered for the original order.

() FAR 16.505(b)(2)(i)(D): It is necessary to place an order to satisfy a minimum guarantee.

() FAR 16.505(b)(2)(i)(E): For orders exceeding the simplified acquisition threshold, a statute expressly authorizes or requires that the purchase be made from a specified source". The statutory

authority permitting an exception to fair opportunity for this action is 38 U.S.C. 8127(c), known as the Veterans First Contracting Program which provides the authority to directly contract with a Service-Disabled Veteran-Owned Small Business (SDVOSB) or a Veteran-Owned Small Business (VOSB).

Rationale Supporting Use of Authority Cited Above:

Uninterrupted services are necessary to ensure that the hospital is able to continue shipping small packages for controlled substance, other medications, and supplies as need with signature delivery to veterans on a daily basis continuing timely quality patient care. Mandatory Source Next Generation Delivery Services BPA/UPS Contract HTC711-23-D-0025 pricing was reviewed and deemed fair and reasonable during award.

6. Efforts to Obtain Competition:

Market research was conducted for this procurement. The Government's program manager conducted market research by reviewing similar shipping services and none were found that could accommodate the same expectations that have been in place for decades and that can meet the Government's requirements. There is no competition anticipated for this acquisition. In accordance with FAR 5.301 and 16.505(b)(2), this action is being synopsized at this time of award, on the Federal Business Opportunities Page (FBO) and the justification is being made here, publicly available.

7. Actions to Increase Competition:

The Government will continue to conduct market research to ascertain if there are changes in the marketplace that would enable future actions to be competed.

8. Market Research:

Market research was conducted using GSA eLibrary Category Corporate Entity, System for Award Management (SAM), Next Generation Delivery Services BPA/UPS Contract which was previously utilized for the exact same services which are currently utilized at this facility.

This is a mandatory source for Package Delivery Parcel Service # HTC711-23-D-C025 with United Parcel Service. IAW government-wide, mandatory use, small package delivery services acquisition known as Next Generation Delivery Services (NGDS).

9. Other Facts: None

10. Technical and Requirements Certification: I certify that the supporting data under my cognizance, which are included in this justification, are accurate and complete to the best of my knowledge and belief.

Cecelia Jacobs,
Supervisory Mail Assistant / Supply Chain Management
WJB Dorn VA Medical Center

Date

11. Determination that Anticipated Cost is Fair and Reasonable: *I hereby determine that the anticipated price to the Government for this contract action will be fair and reasonable. Prices were previously verified as fair and reasonable by United States Transportation Command Customer Advisory award of Next Generation Delivery Services (NGDS) contract HTC711-23-D-C025. Additionally, the quotation will be compared to the Independent Government Cost Estimate.*

12. Contracting Officer's Certification (required): *I certify that the foregoing justification is accurate and complete to the best of my knowledge and belief.*

[Redacted Signature]

Joseph E. Horn
Contracting Officer
Service-Supply Team 4

Date

13. Approvals in accordance with [VHAPG Part 816.505 Indefinite Delivery Contracts: Ordering](#)

- a. One Level Above the Contracting Officer (Required over SAT but not exceeding \$750K):** I certify the justification meets requirements for other than full and open competition.

[Redacted Signature]

Branch Chief
Service-Supply Team 4